

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Luke Petrinovic	Team: Squad #13	CCRB Case #: 201602618	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/26/2016 12:27 AM	Location of Incident: Inside 1998 Broadway and at the 20th Precinct Stationhouse	18 Mo. SOL 9/26/2017	Precinct: 20		
Date/Time CV Reported Mon, 03/28/2016 3:01 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 03/28/2016 3:01 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Peter Velazco	14237	935923	020 PCT
2. POF Margaret Abreu	13577	956365	020 PCT
3. LT Anthony Burgio	00000	926616	020 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Peter Velazco	Abuse: Inside 1998 Broadway and at the 20th Precinct Stationhouse, PO Peter Velazco did not obtain medical treatment for § 87(2)(b)	A . Unsubstantiated
B . POF Margaret Abreu	Abuse: Inside 1998 Broadway, PO Margaret Abreu did not obtain medical treatment for § 87(2)(b)	B . Unsubstantiated
C . LT Anthony Burgio	Abuse: At the 20th Precinct Stationhouse, LT Anthony Burgio did not obtain medical treatment for § 87(2)(b)	C . Unsubstantiated

Case Summary

On March 28, 2016, § 87(2)(b) filed this complaint via the CCRB Call Processing System.

On March 26, 2016, at approximately 12:27 a.m., § 87(2)(b) was at a movie theater located at 1998 Broadway, in Manhattan, with a friend whom she knew as § 87(2)(b). § 87(2)(b) purchased the tickets for the movie, but left the theater with the tickets after they took their seats and did not return. The particular auditorium they were in had assigned seating. § 87(2)(b) was intoxicated at the time, as she had drunk approximately five beers over the course of four hours.

§ 87(2)(b) was approached by an employee of the theater, § 87(2)(b) who told her that she was in the wrong seat, and asked to see her ticket. § 87(2)(b) refused to show the ticket, and refused to move. After arguing with her, § 87(2)(b) called the police. Several minutes later, PO Peter Velazco and PO Margaret Abreu, both of the 20th Precinct, arrived at the theater, and § 87(2)(b) informed them about what was happening. PO Velazco approached § 87(2)(b) and spoke to her. At this point, the auditorium was full and the movie was being delayed because of § 87(2)(b). PO Velazco asked § 87(2)(b) for her ticket, and told her that she needed to show it. § 87(2)(b) argued with PO Velazco, and was combative. § 87(2)(b) refused to show her ticket. After several minutes of arguing, PO Velazco and PO Abreu arrested § 87(2)(b) for § 87(2)(b). § 87(2)(b) became upset, and yelled at the officers. § 87(2)(b) . She allegedly told the officers that she § 87(2)(b) needed to be taken to a VA hospital (**Allegations A and B**).

PO Velazco and PO Abreu took § 87(2)(b) to the 20th Precinct stationhouse, where LT Antony Burgio, of the 20th Precinct, was working as the desk officer. § 87(2)(b) allegedly told LT Burgio that she needed to be taken to a hospital, and he did not respond (**Allegation C**). PO Velazco then put § 87(2)(b) in the holding cells, which were empty. Throughout her time in the holding cells, § 87(2)(b) allegedly asked PO Velazco several times to be taken to a hospital § 87(2)(b), and did not receive a response (**Allegation A**).

§ 87(2)(b) was never provided with any medical treatment, and was eventually released with a Desk Appearance Ticket. After being released she went straight home, opting not to seek medical treatment.

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) during her in person interview. She declined, § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A request for any Notice of Claim related to this incident was sent to the Comptroller's office on June 2, 2016 (Board Review 03). No response has been received as of the date of this report.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) or § 87(2)(b) (Board Review 04, 05).

- PO Velazco has been the subject of two previous allegations of misconduct in two separate cases during his eleven year tenure with the NYPD. One was a force allegation that was exonerated, § 87(2)(b) (Board Review 06).
- PO Abreu has never before been the subject of a CCRB allegation. She has been with the NYPD for one year (Board Review 13).
- LT Burgio has been the subject of four previous allegations of misconduct across three cases during his fifteen year tenure with the NYPD. Two were allegations of physical force, and two were allegations of improper stops. All the allegations were closed as exonerated (Board Review 07).

Potential Issues

- § 87(2)(b) admitted to being upset and intoxicated during the incident. She also alleged that she needed medical attention for mental health issues, not visible injuries. Her condition was never documented by medical professionals, as she never sought medical attention. Also, although an independent witness, § 87(2)(b) was present for the alleged misconduct in the theater, there were no independent witnesses present at the stationhouse when § 87(2)(b) allegedly requested medical attention. § 87(2)(g)

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A – Abuse of Authority: Inside 1998 Broadway and at the 20th Precinct Stationhouse, PO Peter Velazco did not obtain medical treatment for § 87(2)(b)

Allegation B – Abuse of Authority: Inside 1998 Broadway, PO Margaret Abreu did not obtain medical treatment for § 87(2)(b)

Allegation C – Abuse of Authority: At the 20th Precinct Stationhouse, LT Anthony Burgio did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) § 87(2)(b) alleged that she said this to PO Velazco and PO Abreu at the scene of her arrest, and requested to be taken to a hospital after officers approached her at the movie theater. Neither PO Velazco nor PO Abreu responded, and they did not obtain medical treatment for her. Later, when § 87(2)(b) was being brought into the 20th Precinct stationhouse, she told LT Burgio, the desk officer, that she wanted to go to the hospital, and he did not respond. During her time in the holding cells, she occasionally saw PO Velazco and repeatedly told him that she needed to be taken to the hospital, and at one point was banging her head against the wall. Although at one point PO Velazco told her that an ambulance was on her way, none ever came

and § 87(2)(b) never received medical treatment. § 87(2)(b) admitted to being intoxicated during the incident, having a poor memory, and combative with the officers (Board Review 08).

§ 87(2)(b) an independent witness and employee of the movie theater where § 87(2)(b) was arrested, § 87(2)(g) stated that she had first argued with him before the police arrived and that she had refused to show a ticket and not provided any explanation. He denied that she ever described any medical issues, or requested medical treatment, although she was very combative, and did say that she had suffered a trauma in the military (Board Review 09).

PO Velazco, PO Abreu, and LT Burgio were all interviewed. § 87(2)(g) They all stated that § 87(2)(b) was combative and uncooperative with the officers, and stated that she had been in the military; however, she did not describe any medical issues to them and never requested medical treatment (Board Review 10, 11, 12).

§ 87(2)(g)

§ 87(2)(g), it is recommended that *allegations A, B and C* be closed as *unsubstantiated*.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date